

Court No. - 32

Case :- WRIT - C No. - 17544 of 2022

Petitioner :- Rahul Seth

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Gyanendra Kumar Singh

Counsel for Respondent :- C.S.C.,Udit Chandra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vikram D. Chauhan,J.

Learned counsel for the petitioner prays for an adjournment for the day.

As prayed, put up as fresh on 19.7.2022.

This order has been passed in the presence of Sri Udit Chandra, learned counsel for respondent nos.3 & 4.

Order Date :- 23.6.2022

M. Tarik

Court No. - 3

Case :- WRIT - C No. - 17544 of 2022

Petitioner :- Rahul Seth

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Gyanendra Kumar Singh

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Chandra Kumar Rai, J.

Heard Sri Gyanendra Kumar Singh, learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Sri Udit Chandra, learned counsel for the respondent nos. 3 and 4.

This writ petition has been filed praying for the following reliefs:

a) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery certificate dated 28.07.2021 issued by the respondent No. 4 against the petitioner for recovering the amount of Rs.5,23,852.00 as electric dues (Annexure No. 04 to the writ petition),

(b) Issue a writ, order or direction in the nature of mandamus Commanding the respondent No. 4 to provide correct electric bill to the petitioner within reasonable time as may be fixed by this Hon'ble Court and also to direct him to pass final assessment order under paragraph 8.1 (b) of the U.P. Electricity Supply Code, 2005 thereafter, the bill of electric dues may be issued against the petitioner by him and till the final decision is taken by him in the matter of petitioner, the recovery proceeding initiated against the petitioner pursuant to impugned recovery certificate dated 28.07.2021 may be kept in abeyance.

Learned counsel for the respondent No 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.3 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 26.7.2022

T.S.
